

		Plaintiffs' objections to the declaration of Jenny Nguyen are overruled. Plaintiffs' objections to the declaration of Daniel F. Trudell is sustained as to Exhibit B and otherwise overruled. Moving Party shall give notice.
9	Ferrer vs. Essence Home Care, LLC 2024-01439555	Motion to Compel Production Plaintiff Jose Ferrer's motion to compel further responses to his first set of requests for production is GRANTED as follows. (See Code Civ. Proc., § 2031.310.) Defendant Essence Home Care, LLC (EHC) is ORDERED to provide verified further responses without objections to plaintiff's first set of requests for production, Nos. 11-13, 15, 17, 22, 25, 27, 28, 35-38, and 48-54, within 14 days of notice. To avoid any confusion, EHC's further responses shall include the simultaneous production of any and all responsive documents to these requests. Sanctions are DENIED, as plaintiff has failed to demonstrate a proper meet and confer effort. (See Code Civ. Proc., §§ 2016.040 [eff. 1/1/26], 2031.310, subd. (b)(2).) As of 1/1/26, a proper meet and confer requires "a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion." (Id., § 2016.040.) In other words, a mere letter is no longer enough. Plaintiff should have agreed to the telephonic conference requested by EHC's counsel. (See LaCour Decl. ¶¶ 12-13.) Plaintiff shall give notice.

10	Kaur vs. Hill 2024-01436693	1. Motion – Other 2. Status Conference re: ADR Plaintiffs Mandip Kaur and Amrit Pal Singh’s motion to lift stay, resume jurisdiction, and find arbitration waived, is DENIED WITHOUT PREJUDICE. First, proof of service is defective, as the sender’s electronic service address is missing. (Code Civ. Proc., § 1013b, subd. (b)(1).) There is no response by defendant waiving the defective proof of service. (See Carlton v. Quint (2000) 77 Cal.App.4th 690, 698 [response on merits can waive service defect].) Second, the motion is also denied on the merits. Moving parties have not shown that they are entitled to relief pursuant to Code Civ. Proc., §§ 1281.97 et seq., as there is no evidence this matter involves “an employment or consumer arbitration.” (Code Civ. Proc., §§ 1281.97, subd. (a)(1), 1281.98, subd. (a)(1); see also § 1280, subds. (c), (f) [defining “consumer” and “employee,” respectively]; First Amended Complaint, Exs. A and B [contracts pertaining to sale of business].) There is no evidence that the arbitration has been terminated or dismissed. (SWAB Financial, LLC v. E*Trade Securities, LLC (2007) 150 Cal.App.4th 1181, 1200 [“Once a petition is granted and the lawsuit is stayed, ‘the action at law sits in the twilight zone of abatement with the trial court retaining merely vestigial jurisdiction over matters submitted to arbitration ... In the interim ... It is the job of the arbitrator, not the court, to resolve all questions needed to determine the controversy ... It is also up to the arbitrator, and not the court, to grant relief for delay in bringing an arbitration to a resolution;” internal citations omitted].) There is also no evidence that moving parties have taken any action in the arbitration proceedings for relief from defendant’s failure to pay arbitration fees. (See Brock v. Kaiser Foundation
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